

COMMITTEE ON APPROPRIATIONS
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2993
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 41-192, Arizona Revised Statutes, is amended to
3 read:

4 41-192. Powers and duties of attorney general; restrictions
5 on state agencies as to legal counsel; exceptions;
6 compromise and settlement monies

7 A. The attorney general shall have charge of and direct the
8 department of law and shall serve as chief legal officer of the state.
9 The attorney general shall:

10 1. Be the legal advisor of the departments of this state and render
11 such legal services as the departments require.

12 2. Establish administrative and operational policies and procedures
13 within ~~his~~ THE ATTORNEY GENERAL'S department.

14 3. Approve long-range plans for developing departmental programs
15 therein, and coordinate the legal services required by other departments
16 of this state or other state agencies.

17 4. Represent school districts and governing boards of school
18 districts in any lawsuit involving a conflict of interest with other
19 county offices.

20 5. Represent political subdivisions, school districts and
21 municipalities in suits to enforce state or federal statutes pertaining to
22 antitrust, restraint of trade or price-fixing activities or conspiracies,
23 if the attorney general notifies in writing the political subdivisions,
24 school districts and municipalities of the attorney general's intention to
25 bring any such action on their behalf. At any time within thirty days
26 after the notification, a political subdivision, school district or
27 municipality, by formal resolution of its governing body, may withdraw the
28 authority of the attorney general to bring the intended action on its
29 behalf.

30 6. In any action brought by the attorney general pursuant to state
31 or federal statutes pertaining to antitrust, restraint of trade, or
32 price-fixing activities or conspiracies for the recovery of damages by
33 this state or any of its political subdivisions, school districts or
34 municipalities, in addition to the attorney general's other powers and
35 authority, the attorney general on behalf of this state may enter into

1 contracts relating to the investigation and prosecution of such action
2 with any other party plaintiff who has brought a similar action for the
3 recovery of damages and with whom the attorney general finds it
4 advantageous to act jointly or to share common expenses or to cooperate in
5 any manner relative to such action. In any such action, notwithstanding
6 any other laws to the contrary, the attorney general may undertake, among
7 other things, to render legal services as special counsel or to obtain the
8 legal services of special counsel from any department or agency of the
9 United States, of this state or any other state or any department or
10 agency thereof or any county, city, public corporation or public district
11 in this state or in any other state that has brought or intends to bring a
12 similar action for the recovery of damages or its duly authorized legal
13 representatives in such action.

14 7. Organize the civil rights division within the department of law
15 and administer such division pursuant to the powers and duties provided in
16 chapter 9 of this title.

17 8. Compile, publish and distribute to all state agencies,
18 departments, boards, commissions and councils, and to other persons and
19 government entities on request, at least every ten years, the Arizona
20 agency handbook that sets forth and explains the major state laws that
21 govern state agencies, including information on the laws relating to
22 bribery, conflicts of interest, contracting with the government,
23 disclosure of public information, discrimination, nepotism, financial
24 disclosure, gifts and extra compensation, incompatible employment,
25 political activity by employees, public access and misuse of public
26 resources for personal gain. A supplement to the handbook reflecting
27 revisions to the information contained in the handbook shall be compiled
28 and distributed by the attorney general as deemed necessary.

29 B. Except as otherwise provided by law, the attorney general may:

30 1. Organize the department into such bureaus, subdivisions or units
31 as ~~he~~ THE ATTORNEY GENERAL deems most efficient and economical, and
32 consolidate or abolish them.

33 2. Adopt rules for the orderly conduct of the business of the
34 department.

35 3. Subject to chapter 4, article 4 of this title, employ and assign
36 assistant attorneys general and other employees necessary to perform the
37 functions of the department.

38 4. Compromise or settle any action or claim by or against this
39 state or any department, board or agency of this state. If the compromise
40 or settlement involves a particular department, board or agency of this
41 state, the compromise or settlement shall be first approved by the
42 department, board or agency. If no department or agency is named or
43 otherwise materially involved, the approval of the governor shall be first
44 obtained.

45 5. Charge reasonable fees for distributing official publications,
46 including attorney general legal opinions and the Arizona agency handbook.
47 The fees received shall be transmitted to the state treasurer for deposit
48 in the state general fund.

1 C. The powers and duties of a bureau, subdivision or unit shall be
2 limited to those assigned by law to the department.

3 D. Notwithstanding any law to the contrary, except as provided in
4 subsections E and F of this section, no state agency other than the
5 attorney general shall employ legal counsel or make an expenditure or
6 incur an indebtedness for legal services, but the following are exempt
7 from this section:

8 1. The director of water resources.

9 2. The residential utility consumer office.

10 3. The industrial commission ~~OF ARIZONA~~.

11 4. The Arizona board of regents.

12 5. The auditor general.

13 6. The corporation commissioners and the corporation commission
14 other than the securities division.

15 7. The office of the governor.

16 8. The constitutional defense council.

17 9. The office of the state treasurer.

18 10. The Arizona commerce authority.

19 11. The water infrastructure finance authority of Arizona.

20 12. ~~THE DEPARTMENT OF PUBLIC SAFETY~~.

21 E. If the attorney general determines that ~~he~~ ~~THE ATTORNEY GENERAL~~
22 is disqualified from providing judicial or quasi-judicial legal
23 representation or legal services on behalf of any state agency in relation
24 to any matter, the attorney general shall give written notification to the
25 state agency affected. If the agency has received written notification
26 from the attorney general that the attorney general is disqualified from
27 providing judicial or quasi-judicial legal representation or legal
28 services in relation to any particular matter, the state agency is
29 authorized to make expenditures and incur indebtedness to employ attorneys
30 to provide the representation or services.

31 F. If the attorney general and the director of the department of
32 agriculture cannot agree on the final disposition of a pesticide complaint
33 under section 3-368, if the attorney general and the director determine
34 that a conflict of interest exists as to any matter or if the attorney
35 general and the director determine that the attorney general does not have
36 the expertise or attorneys available to handle a matter, the director is
37 authorized to make expenditures and incur indebtedness to employ attorneys
38 to provide representation or services to the department with regard to
39 that matter.

40 G. Any department or agency of this state authorized by law to
41 maintain a legal division or incur expenses for legal services from funds
42 derived from sources other than the general revenue of the state, or from
43 any special or trust fund, shall pay from such source of revenue or
44 special or trust fund into the general fund of the state, to the extent
45 such funds are available and on a reimbursable basis for warrants drawn,
46 the amount actually expended by the department of law within legislative
47 appropriations for such legal division or legal services.

48 H. Appropriations made pursuant to subsection G of this section
49 ~~shall~~ ~~ARE~~ not ~~be~~ subject to lapsing provisions otherwise provided by law.

1 Services for departments or agencies to which this subsection and
2 subsection F of this section are applicable shall be performed by special
3 or regular assistants to the attorney general.

4 I. Notwithstanding section 35-148, monies received by the attorney
5 general from charges to state agencies and political subdivisions for
6 legal services relating to interagency service agreements shall be
7 deposited, pursuant to sections 35-146 and 35-147, in an attorney general
8 agency services fund. Monies in the fund are subject to legislative
9 appropriation and are exempt from the provisions of section 35-190
10 relating to lapsing of appropriations.

11 J. Unless otherwise provided by law, monies received for and
12 belonging to the state and resulting from compromises and settlements
13 entered into pursuant to subsection B of this section, excluding
14 restitution and reimbursement to state agencies for costs or attorney
15 fees, shall be deposited into the state treasury and credited to the state
16 general fund pursuant to section 35-142. Monies received for and
17 belonging to the state and resulting from a compromise or settlement are
18 not considered custodial, private or quasi-private monies unless
19 specifically provided by law. On or before January 15, April 15, July 15
20 and October 15, the attorney general shall file with the governor, with
21 copies to the director of the department of administration, the president
22 of the senate, the speaker of the house of representatives, the secretary
23 of state and the staff director of the joint legislative budget committee,
24 a full and complete account of the deposits into the state treasury made
25 pursuant to this subsection in the previous calendar quarter. For the
26 purposes of this subsection, "restitution" means monies intended to
27 compensate a specific, identifiable person, including this state, for
28 economic loss.

29 Sec. 2. Appropriation; peace officers' training fund

30 The sum of \$5,000,000 is appropriated from the consumer
31 protection-consumer fraud revolving fund established by section
32 44-1531.01, Arizona Revised Statutes, in fiscal year 2026-2027 to the
33 ~~[peace officers' training fund]~~ [gang and immigration intelligence team
34 enforcement mission fund] established by section ~~[41-1825]~~ [41-1724],
35 Arizona Revised Statutes.

36 Enroll and engross to conform

37 Amend title to conform

And, as so amended, it do pass

DAVID LIVINGSTON
CHAIRMAN

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